

From: [Garth Wolfson](#)
To: [Judges](#)
Cc: ylawfirm@gmail.com; [Secretary](#)
Subject: RE: Docket No. 20-17 - Marie Carew d/b/a/ Holiday Shipping v. Maersk Line S/A & John Does
Date: Thursday, June 3, 2021 3:39:14 PM
Attachments: [E-Mail Chain dated April 27 to May 25, 2021.pdf](#)

Honorable Madam,

We represent the Respondent, MAERSK LINE A/S (“MAERSK”), and write in opposition to the letter application of the Complainant, MARIE CAREW d/b/a HOLIDAY SHIPPING (“HOLIDAY”), to reopen discovery.

First, after repeated defaults on the part of HOLIDAY, Your Honor’s Order dated May 13, 2021 made it abundantly clear that no further failures to adhere to the schedule would be tolerated. Those directives and the integrity of the Commission’s rulings would thus be plainly undermined were HOLIDAY’s request to now be entertained. Nor has any reasonable excuse been presented by HOLIDAY. Absent an order permitting attorney withdrawal, Mr. Omole’s representation of HOLIDAY continued, regardless of his motion to be relieved as counsel filed on the eve of the deadline.

Second, in the course of these proceedings (including, *inter alia*, the Your Honor’s *sua sponte* directives to address the basis for Maersk’s charges and the status of the vehicles), Maersk has already attempted to uncover and disclose all documents and information pertinent to Holiday’s claims. We might add that Maersk has done so even though we have received nothing from Holiday to substantiate the allegations in the Complaint, and even though Holiday has failed to even interpose an answer to Maersk’s Counter-Claim. As to HOLIDAY’s latest assertion that some form of release is required of MAERSK before the NPA will turn over the vehicles to the consignees, we have repeatedly responded to Mr. Omole that MAERSK accomplished delivery of the cargo to the NPA in the normal custom and practice of the port, is unaware of the delivery order procedure of which he speaks, and, having disavowed any interest in the vehicles several times over, would, in any event, gladly sign off on any such form Mr. Omole might care to provide if MAERSK could finally be done with this matter free and clear. A copy of correspondence in this regard is herewith attached. As the parties have previously advised Your Honor, the NPA, not MAERSK, operates and controls the port facilities at Lagos. We do not, therefore, see any need for further discovery responses on the part of Maersk.

Third, Your Honor will also recall that, solely to avoid disproportionate litigation expenses, Maersk withdrew its relatively small years-old freight and demurrage claims relative to the four shipments at issue in this case, which claims caused HOLIDAY to file the instant Complaint, in the misplaced expectation that the overture would be welcomed and Holiday’s complaint would be similarly withdrawn or mooted. Maersk remains uninclined to incur yet more fees and costs by engaging in still more discovery.

Indeed, and as a fourth point, Maersk refrained from issuing its own demands to Holiday only in reliance upon the understanding that Holiday felt the same way. That understanding appeared to have been reconfirmed by Holiday’s election to not serve discovery demands by May 28, 2021, as required. The change in course now sought by HOLIDAY is thus especially unfair and unwarranted.

Our thanks, again, for the consideration afforded to this matter.

Respectfully submitted,

Garth S. Wolfson

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From: ylawfirm@gmail.com [mailto:ylawfirm@gmail.com]
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Subject: Docket No. 20-17 - Marie Carew d/b/a/ Holiday Shipping v. Maersk Line S/A & John Does
Importance: High

Honorable Wirth,

Attached, please find Complainant's request for your attention to resolving a discovery dispute.

Respectfully,

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